

Present
Mr. Justice Sheikh Abdul Awal
Criminal Revision No. 464 of 2011

Nayan Ahamed

.....Convict-Petitioner.

-Versus-

The State.

.....Opposite party

None appears

.....For the Petitioner.

Ms. Shahida Khatoon, D.A.G with

Ms. Sabina Perven, A.A.G with

Ms. Kohenoor Akter, A.A.G.

..... For the Opposite party.

Heard on 29.01.2024 and

Judgment on 30.01.2024.

Sheikh Abdul Awal, J:

This Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order of conviction and sentence dated 20.03.2011 passed by the learned Additional Metropolitan Sessions Judge, 1st Court, Dhaka in Metro Criminal Appeal No. 499 of 2010 dismissing the appeal and affirming the judgment and order of conviction and sentence dated 10.06.2010 passed by the learned Metropolitan

Magistrate, Druta Bichar Adalat No.8, Dhaka in G.R Case No. 59 of 2010 corresponding to Mohammadpur Police Station Case No. 59 dated 27.01.2010 convicting the petitioner under section 4(1) of the Ain Sringkhola Bighnakari Aporadh (Druto Bichar) Ain, 2002 and sentencing him thereunder to suffer rigorous imprisonment for a period of 3(three) years and to pay a fine of Taka 5,000/- in default to suffer rigorous imprisonment for a further period of 3 (three) months more should not be set-aside and/or such other or further order or orders passed as to this Court may seem fit and proper.

The prosecution case, in short, is that on 27.01.2010 at 16:15 hours one, Md. Abul Kashem as informant lodged an Ejahar with Mohammadpur Police Station stating, inter-alia, that on 27.01.2010 at 10:15 a.m. the informant got information through one Sarwar Khan (tenant of 1st floor of his house) that the inmates of his house are crying inside the house and thereafter the informant rushed to his house and saw that some excited people of the locality are bringing out the accused by beating and also saw so many people inside his house and also found his wife and sister in injured condition while he asked to his wife and came to know that at 10:15 hours the accused came to his house and

told his wife to take notice of city corporation and at that point of time the accused entered into the house and closed the door from the inside of the house by showing knife and asked her to give gold ornaments and other valuable things and started stabbing on the victims (wife and sister of the informant) resulting both the victims sustained serious bleeding injury and at one stage his sister became senseless and thereafter, the accused snatched the gold ornaments and mobile phone. Thereafter, on hearing hue and cry the local people came and caught-hold of the accused and beaten him and thereafter, on hearing the news RAB forces came and took the accused under their custody and seized the knife of the accused and prepared seizure list in presence of the witnesses. Thereafter, the informant took his wife and sister to ATM hospital of Janata Housing under Adabar police station for treatment and in this way the delay has been caused in lodging the F.I.R.

Upon the aforesaid First Information Report, Mohammadpur Police Station Case No. 59 dated 27.01.2010 under section 4 of the Ain Shringkhola Binghnakari Aparadhh (Druto Bichar) Ain, 2002 was started against the convict petitioner and others.

During investigation, police visited the place of occurrence, prepared sketch-map, recorded statement of

the witnesses under section 161 Cr.P.C. and thereafter, submitted charge sheet No. 53 dated 03.02.2010 under section 4 of the Ain Shringkhola Binghnakari Aparadhh (Druto Bichar) Ain, 2002.

Thereafter, the accused petitioner was put on trial before the learned Metropolitan Magistrate, Druto Bichar Adalat No.8, Dhaka to answer a charge under section 4(1) of the Ain Shringkhola Binghnakari Aparadhh (Druto Bichar) Ain, 2002 in which the accused-petitioner pleaded not guilty and claimed to be tried.

At the trial, the prosecution side examined as many as 10(ten) witnesses to prove its case.

The learned Magistrate, Druto Bichar Adalat No.8, Dhaka after completion of trial by his judgment and order dated 27.01.2010 found the accused-petitioner guilty under section 4 (1) of the Ain Shringkhola Binghnakari Aparadh (Druto Bichar) Ain, 2002 and sentenced the accused-petitioner thereunder to suffer rigorous imprisonment for a period of 3(three) years and to pay a fine of Taka 5,000/- in default to suffer rigorous imprisonment for a further period of 3 (three) months.

Against which the present accused-petitioner preferred Metro. Criminal Appeal No. 499 of 2010

before the learned Metropolitan Sessions Judge, Dhaka, which was subsequently transmitted to the Court of the learned Additional Metropolitan Sessions Judge, 1st Court, Dhaka for disposal, who by the impugned judgment and order dated 20.03.2011 dismissed the appeal and affirmed the judgment and order of conviction and sentence dated 10.06.2010 passed by the trial Court below.

Being aggrieved by the aforesaid impugned judgment and order of conviction and sentence dated 20.03.2011 passed by the learned Additional Metropolitan Sessions Judge, 1st Court, Dhaka the present convict-petitioner moved before this Court and obtained the present Rule.

No one found present to press the appeal on repeated calls despite of fact that this criminal revision has been appearing in the list for hearing with the name of the learned Advocate for a number of days.

In view of the fact that this petty old case has been dragging before this Court for near about 13 years arising out of 3 years sentence, I am inclined to dispose of it on merit on the basis of the evidence and materials on record.

Ms. Kohenoor Akter, the learned Assistant Attorney-General appearing for the State supports the judgments of both the Courts below, which were according to her just, correct and proper. The learned Assistant Attorney-General in the course of argument takes me through the F.I.R., charge sheet, deposition of witnesses and other materials on record including the judgments of 2 Courts below and then submits that both the courts below justly found the petitioner guilty under section 4(1) of the Ain Sringkhola Bighnakari Aporadh (Druto Bichar) Ain, 2002 and sentenced him thereunder to suffer rigorous imprisonment for a period of 3(three) years and to pay a fine of Taka 5,000/- in default to suffer rigorous imprisonment for a further period of 3 (three) months.

Having heard the learned Assistant Attorney General and having gone through the materials on record, the only question that calls for my consideration in this Revision is whether the trial Court and appellate court below committed any error in finding the accused-appellant guilty of the offence under section 4(1) of the Ain Sringkhola Bighnakari Aporadh (Druto Bichar) Ain, 2002.

On scrutiny of the record, it appears that on 27.01.2010 the informant lodged the F.I.R stating, inter-alia, that on 27.01.2010 at 10:15 a.m. after getting information through one Sarwar Khan (tenant of 1st floor of his house) the informant rushed to his house and saw that some excited people of the locality are bringing out the accused by beating and also found his wife and sister in injured condition while he asked his wife and came to know that at 10:15 hours the accused came to his house and told his wife to take notice of city corporation and at that point of time the accused entered into the house and closed the door from the inside of house showing knife asked her to give gold ornaments and other valuable things and thereafter, started stabbing on the victims resulting both the victims sustained serious bleeding injury and at one stage his sister became senseless and thereafter, the accused snatched the gold ornaments and mobile phone. Thereafter, on hearing hue and cry the local people came there and caught-hold of the accused and beaten him and thereafter, on hearing the news RAB forces also came and took the accused under their custody and seized the knife of the accused and prepared seizure list in presence of the witnesses. Police after completion of investigation submitted charge sheet against the accused petitioner under section 4 of the Ain

Shringkhola Binghnakari Aparadhh (Druto Bichar) Ain, 2002.

It further appears that at the trial the prosecution side examined as many as 10 witnesses out of which, PW-1, Abul Kashem (informant of the case) in his deposition stated the F.I.R case in details. This witness proved the seizure list as “Ext-1” and his signature as “Ext.-1/1” bleeding stained cloth as material “Ext-I” and F.I.R. as “Ext-2”. In cross examination this witness stated that- “আমি মূল ঘটনা নিজে দেখিনি। তবে স্ত্রী ও বোন কে রক্তাক্ত দেখি। বেলা ১২:০০ টার পর পরেই আমি স্ত্রী ও বোনকে হাসপাতালে নিই।” This witness in his cross denied the suggestion stating in the following language- “সত্য নয় যে, আসামী শুধু বিলের কাগজ প্রদান করে কিংবা অন্য ঘটনা সে জানে না কিংবা আসামী আমার স্ত্রী ও বোনকে আঘাত করেনি কিংবা মিথ্যা সাক্ষ্য দিলাম।” PW-2, Rokeya Begum (1st victim of the case) and PW-3 (2nd victim of the case). Both this witnesses in their respective evidences corroborated the evidence of PW-1 in respect of all material particulars. PW-4 (neighbouring witness), PW-5, A.S.I. Md. Belal Hossain, PW-6, D.A.D Md. Jabiul Islam, member of RAB, PW-7, Platoon Commander Abdul Alim, member of RAB, PW-8, Nayek Sankar Paul, member of RAB, PW-9, constable Md. Nur Alam, member of RAB, all these witnesses corroborated the evidence of PW-1, PW-2 and PW-3 in respect of all

material particulars. Here it may be mentioned that PW-7, PW-8 and PW-9 adopted the evidence of PW-6. PW-10, S.I. Md. Yusuf Mia investigated the case and submitted charge sheet against the accused-petitioner. This witness in his deposition stated that during investigation he visited the place of occurrence, prepared sketch-map, recorded statement of the witnesses under section 161 Cr.P.C. and accordingly, submitted charge sheet No. 53 dated 03.02.2010 under section 4 of the Ain Shringkhola Binghnakari Aparadhh (Druto Bichar) Ain, 2002 against the accused-petitioner.

It is found that, the learned Metropolitan Magistrate on due consideration of the entire evidence and materials on record found the accused-appellant guilty under section 4 (1) of the Ain Shringkhola Binghnakari Aparadh (Druto Bichar) Ain, 2002 and sentenced the accused-petitioner thereunder to suffer rigorous imprisonment for a period of 3(three) years and to pay a fine of Taka 5,000/- in default to suffer rigorous imprisonment for a period of 3 (three) months more.

On appeal being Metro. Criminal Appeal No. 449 of 2010 the learned Additional Metropolitan Sessions Judge, 1st Court by the impugned judgement and order dated 20.03.2011 dismissed the appeal and affirmed the

judgment and order of conviction and sentence of the trial Court.

In view of the above quoted evidence and materials on record it appears that all the prosecution witnesses in their respective testimony stated the place, manner and time of the occurrence categorically. Therefore, in the attending facts and circumstances of the case, I find no reason to differ with the view taken by the Courts below.

On an analysis of the impugned judgments and order of conviction and sentence, I find no flaw in the reasonings of the two Courts below or any ground to assail the same.

In view of my discussion made in the foregoing paragraph it is by now clear that the instant Rule must fail.

In the result, the Rule is discharged. The impugned judgment and order of conviction and sentence dated 20.03.2011 passed by the learned Additional Metropolitan Sessions Judge, 1st Court, Dhaka in Metro. Criminal Appeal No. 499 of 2010 dismissing the appeal and affirming the judgment and order of conviction and sentence dated 10.06.2010 passed by the learned Metropolitan Magistrate, Druta Bichar Adalat No.8, Dhaka in G.R Case No. 59 of 2010 corresponding to

Mohammadpur Police Station Case No. 59 dated 27.01.2010 against the accused-petitioner is hereby affirmed/maintained.

The convict-petitioner is directed to surrender his bail bond within 3 (three) months from today to suffer rest of the sentence, failing which the Trial Court shall take necessary steps to secure arrest against the convict petitioner, Nayan Ahamed.

Send down the lower Courts' records at once.